

10.	2025-1474963 Hood vs. Avis Budget Car Rental, LLC	Defendant Avis Budget Car Rental, LLC's ("Avis") Motion to Dismiss is granted. Avis's request for judicial notice (ROA 71) is granted. (Evid. Code § 452, subd. (d).) Avis moves, under CCP section 391, to dismiss the action, with prejudice, on the grounds that Hood "is a vexatious litigant, subject to a prefiling order" and "was required to obtain an order from the presiding judge to bring this action," but did not fulfill this requirement. (Mot. at p. 3.) A "vexatious litigant" is defined to include any person, "[i]n any litigation while acting in propria persona," who "repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay." (Code Civ. Proc., § 391, subd. (b)(3).) Where a person is found to be a "vexatious litigant," the court may "enter a prefiling order which prohibits a vexatious litigant from filing any new litigation in the courts of this state in propria persona without first obtaining leave of the presiding justice or presiding judge of the court where the litigation is proposed to be filed. Disobedience of the order by a vexatious litigant may be punished as a contempt of court." (Code Civ. Proc., § 391.7, subd. (a).) If such an order is entered, the presiding judge or justice "shall permit the filing of that litigation only if it appears that the litigation has merit and has not been filed for the purposes of harassment or delay"; security may also be required. (Code Civ. Proc., § 391.7, subd. (b).) The clerk may not file any litigation presented by a vexatious litigant subject to a prefiling order "unless the vexatious litigant first obtains an order from the presiding justice or presiding judge permitting the filing." However, if the clerk "mistakenly files the litigation without the order, any party may file with the clerk and serve, or the presiding justice or presiding judge may direct the clerk to file and serve, on the plaintiff and other parties a notice stating that the plaintiff is a vexatious litigant subject to a prefiling order as set forth in subdivision (a)." (Code Civ. Proc., § 391.7, subd. (c).) "The filing of the notice shall automatically stay the litigation." Unless the plaintiff obtains an order from the presiding justice or presiding judge permitting the filing of the litigation, within 10 days of the filing of that notice, the litigation "shall be automatically dismissed." (<i>Id.</i>) Here, Avis has proffered uncontroverted evidence that Hood is subject to a prefiling order entered in Los Angeles Superior Court on or about 3/28/16. (ROA 71.) The record also reflects that, on or about 2/2/26, Avis gave written notice that Hood is a vexatious litigant subject to a prefiling order. (ROA 75.)
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		In his opposition, Hood does not deny that he is a vexatious litigant subject to a prefilng order. Nor does Hood deny that he has failed to obtain a prefilng order for this action. The only basis for Hood's opposition is that Hood did not learn Avis had not filed a response until the CMC on 1/29/26, and believes he should have been able to obtain default against Avis before it filed this motion on 2/2/26. These arguments lack merit, because it is not Avis's duty to inform Hood of whether it is in default. It is "well established by the case law that where a pleading is belatedly filed, but at a time when a default has not yet been taken, the plaintiff has, in effect, <i>granted the defendant additional time within which to plead and he is not strictly in default.</i>" (<i>Goddard v. Pollock</i> (1974) 37 Cal.App.3d 137, 141, emphasis added.) Accordingly, the Clerk properly rejected Hood's multiple attempts to request entry of default, because Avis had already filed its response before Hood filed its requests. Because Hood is subject to a prefilng order and has not obtained an order from the presiding judge permitting the filing of this action, the motion is granted. The Court orders this entire action is dismissed pursuant to CCP section 391.7, subd. (c).) Although Avis requests the dismissal be "with prejudice," the Court dismisses this action without prejudice. (See <i>Kovacevic v. Avalon at Eagles' Crossing Homeowners Assn.</i> (2010) 189 Cal.App.4th 677, 687.) Avis shall give notice of the ruling.
11.	2025-1507567 Lifestarts, LLC. vs. CA-RSJ Holdings, LLC.	The Court sustains Defendant CA-RSJ Holdings, LLC's Demurrer to Plaintiffs Lifestarts LLC, Chris Knierim, and David Parker's First Amended Complaint (FAC) with 20 days leave to amend. <u>Request for Judicial Notice</u> Defendant's unopposed request for judicial notice is granted. The Lease is incorporated into the FAC and is the subject of the breach of contract cause of action. Its authenticity is not disputed and Defendant does not oppose the request. <u>Merits</u> 1. <u>Negligence</u> All persons are responsible for injuries caused by their lack of ordinary care in managing their property. (Civ. Code § 1714(a); <i>Kinsman v. Unocal Corp.</i> (2005) 37 Cal.4th 659, 672.) A landowner